



US0D1090004S

(12) **United States Design Patent** (10) **Patent No.:** **US D1,090,004 S**
St. Peter et al. (45) **Date of Patent:** **** Aug. 26, 2025**

(54) **FOOTWEAR UPPER**

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(**) Term: **15 Years**

(21) Appl. No.: **29/908,452**

(22) Filed: **Jan. 12, 2024**

(51) **LOC (15) Cl.** **02-04**

(52) **U.S. Cl.**
USPC **D2/969**

(58) **Field of Classification Search**

USPC D2/896, 900, 902, 904, 906–908,
D2/916–924, 925–945, 969–979
CPC A43B 1/00; A43B 1/10; A43B 1/12; A43B
1/14; A43B 3/00; A43B 3/10; A43B 3/12;
A43B 3/14; A43B 5/00; A43B 5/001;
A43B 5/002; A43B 5/003; A43B 5/007;
A43B 5/008; A43B 5/02; A43B 5/06;
A43B 5/10; A43B 5/12; A43B 5/14;
A43B 13/00; A43B 13/02; A43B 13/023;
A43B 13/026; A43B 13/04; A43B 13/14;
A43B 13/141; A43B 13/18; A43B 13/181

See application file for complete search history.

(56) **References Cited**

U.S. PATENT DOCUMENTS

D351,937 S * 11/1994 Hewett D2/969
D402,456 S * 12/1998 Greenberg D2/969
D441,175 S * 5/2001 Ritter D2/907
D477,456 S * 7/2003 Burg D2/969
D671,718 S * 12/2012 McVicker D2/908
D726,998 S * 4/2015 Mochen D2/954
D727,606 S * 4/2015 Mochen D2/954
D817,620 S * 5/2018 Weddle D2/969

D848,718 S 5/2019 Mahoney
D867,729 S * 11/2019 Dean D2/902
D882,909 S * 5/2020 Small D2/902
D899,749 S * 10/2020 Weddle D2/969
D909,022 S * 2/2021 Patt D2/907
D927,840 S * 8/2021 Sashen D2/969
D930,343 S 9/2021 Zhang

(Continued)

OTHER PUBLICATIONS

<https://www.saucony.com/en/guide-17/58871M.html>, at least as early as Jan. 11, 2024.

(Continued)

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(57) **CLAIM**

The ornamental design for a footwear upper as shown and described.

DESCRIPTION

FIG. 1 is a perspective view of a footwear upper embodying the new design;

FIG. 2 is a top view thereof;

FIG. 3 is a bottom view thereof;

FIG. 4 is a right side view thereof;

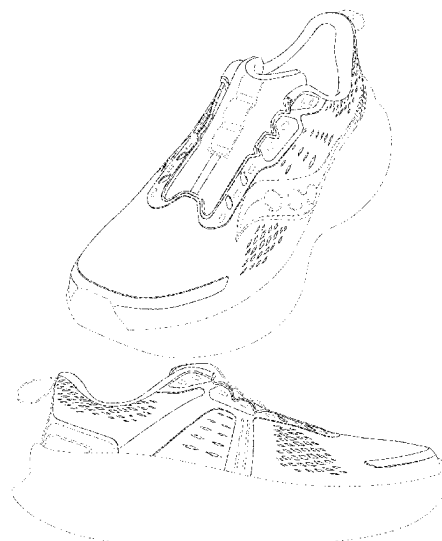
FIG. 5 is a left side view thereof;

FIG. 6 is a front view thereof; and,

FIG. 7 is a rear view thereof.

The figures show features in dash-dot-dot broken lines that form no part of the claimed design. Further, the dash-dot-dot broken lines immediately adjacent the solid line portions of the design form the boundary of the claimed design, with those dash-dot-dot broken lines forming no part of the claimed design. The evenly spaced dash-dash broken lines in the figures depict stitching, which forms no part of the claimed design.

1 Claim, 7 Drawing Sheets



(56)

References Cited

U.S. PATENT DOCUMENTS

D931,587 S	9/2021	Kou	
D931,593 S *	9/2021	Han	D2/972
D933,345 S	10/2021	Mahoney	
D941,561 S *	1/2022	Fu	D2/908
D943,906 S *	2/2022	Driscoll	D2/972
D947,505 S *	4/2022	Lin	D2/908
D952,294 S *	5/2022	Li	D2/908
D956,391 S *	7/2022	Small	D2/907
D961,217 S *	8/2022	Jensen	D2/969
D1,007,836 S *	12/2023	Bidal	D2/972
D1,010,281 S *	1/2024	McCourt	D2/907
D1,014,911 S *	2/2024	Kopp	D2/907
D1,026,444 S *	5/2024	Mahoney	D2/969
D1,028,432 S *	5/2024	Diacre	D2/908
D1,033,854 S *	7/2024	Gao	D2/969
D1,049,603 S *	11/2024	Kim	D2/969
D1,050,707 S *	11/2024	Walker	D2/972
D1,065,784 S *	3/2025	Guarnier	D2/944
D1,066,896 S *	3/2025	Driscoll	D2/969
D1,067,592 S *	3/2025	Kim	D2/944

OTHER PUBLICATIONS

https://www.saucony.com/en/progrid-triumph-4/53038U.html?dwvar_53038U_color=S70704-10#cgid=mens-grid&prefn1=isOnSale&prefv1=false&start=1, at least as early as Jan. 11, 2024.

https://www.saucony.com/en/shadow-5000/195020042137.html?gad_source=1&gclid=CjwKCAjw88yxBhBWEiwa7cm6pQhm_nAtH6e3022spPfxrmaqDbkUcYmuwl--dtHV8u39lv5gljDg7BoC1w4QAvD_BwE&gclid=aw.ds, at least as early as Jan. 11, 2024.

https://www.amazon.com/Saucony-Guide-Running-Alloy-Topaz/dp/B09871XPJV/ref=asc_df_B09871XPJV/?tag=hyprod-20&linkCode=df0&hvadid=591457437242&hvpos=&hvnetw=g&hvrnd=12003908527105203713&hvpone=&hvptwo=&hvqmt=&hvdev=c&hvdvcmdl=&hvlocint=&hvlocphy=9017518&hvtargid=pla-1653278328185&psc=1&mclid=e4940fef5b1d36b3a4b315986eb834d2&gclid=CjwKCAjw88yxBhBWEiwa7cm6pbszgHX128xDlmrFR-YvzWJY9XHZVL30ntkys5tHC60njcQxxRd71hoCG08QAvD_BwE, at least as early as Jan. 11, 2024.

https://www.amazon.com/Saucony-Guide-Running-Royal-Berry/dp/B093CCJ9CR/ref=asc_df_B093CCJ9CR/?tag=hyprod-20&linkCode=df0&hvadid=693377295992&hvpos=&hvnetw=g&hvrnd=10694011680919307044&hvpone=&hvptwo=&hvqmt=&hvdev=c&hvdvcmdl=&hvlocint=&hvlocphy=9017518&hvtargid=pla-1666709777474&psc=1&mclid=a93a7d6af59360d9adb21eecd12d7b1&gad_source=1&gclid=CjwKCAjw88yxBhBWEiwa7cm6pXBatJE4ZOMc_eWJwSNbqTUit6eehJZM2qvtlQ91GSs3tvQjrxfmQRoCAU0QAvD_BwE, at least as early as Jan. 11, 2024.

https://www.saucony.com/en/grid-shadow-2-mushroom/59032U.html?dwvar_59032U_color=S70799-3#cgid=mens-grid&prefn1=isOnSale&prefv1=false&start=1, at least as early as Jan. 11, 2024.

https://www.saucony.com/en/guide-14/48072W.html?dwvar_48072W_color=S10654-12&ref=guide&q=guide&start=1, at least as early as Jan. 11, 2024.

https://www.amazon.com/Saucony-Running-CHARCOAL-BLACK-Medium/dp/B08TQJN94R/ref=pd_lpo_1?pd_rd_i=B08L62VLBM&th=1&psc=1, at least as early as Jan. 11, 2024.

https://www.amazon.com/Saucony-Womens-Running-Multicolour-Silver/dp/B01GIPJZ4C/ref=sr_1_5?keywords=saucony+guide&qid=1641837270&sr=8-5, at least as early as Jan. 11, 2024.

Saucony, Guide 13, https://www.amazon.com/Saucony-S20549-35-Guide-Running-Blackout/dp/B07VN7RT1F/ref=sr_1_8?keywords=saucony+guide&qid=1641837270&sr=8-8, at least as early as Jan. 11, 2024.

Saucony, Triumph 19 Running Shoe, https://www.amazon.com/Saucony-Running-Shoes-Triumph-Reverie/dp/B096FH6S2Q/ref=sr_1_5?crd=35UVNQ3ZBYBAE&keywords=saucony+triumph&qid=1641837491&sprefix=saucony+triumph%2Caps%2C164&sr=8-5, at least as early as Jan. 11, 2024.

Saucony, Triumph 17 Running Shoe, https://www.amazon.com/Saucony-S20546-25-Triumph-Running-Black/dp/B07VN5Z3SL/ref=sr_1_8?crd=35UVNQ3ZBYBAE&keywords=saucony+triumph&qid=1641837491&sprefix=saucony+triumph%2Caps%2C164&sr=8-8, at least as early as Jan. 11, 2024.

https://www.amazon.com/Saucony-Guide-Sneaker-Black-Glade/dp/B0BN4PZCDDR/ref=sr_1_1_sspa?dib=eyJ2IjoiMSJ9.iriXs0vBowRjHHDgZDtDxgUYoYmS-7Lexc550bAdWWsK2RkN69zSrZDHdN7z1Z12DjS9QMkpTWZM13jFJnbEcqtfmF9L-SqFHVb8x3izSniVtX-fz6CGugYE6VPOXCAXhZhxriIHGV15mDPLzCfpxSNNh_wlMokM-6ZMORIZd9iukstGjhZgyDM_hTNOZFpwSUReo-anohk80G8jDrPDx7-ihQMpPeieYu3Vsm7sHf1v0y7cXJN9zoukD oCVWO6hV380DcFXXRPwnYAmx9JiDuF8rcf1eIODVf6iKTAY0.-9tZ51JG3rASE_OOUzZuNaNyFme8KJqInjxj4DwT-A&dib_tag=se&gad_source=1&gclid=CjwKCAjw88yxBhBWEiwa7cm6pYkhlBUjFqSiXpNdUgF_asFuH-IVsQHTunEhSBqBTQQUxZyocL50ehcFy8QAvD_BwE&hvadid=685751786314&hvdev=c&hvlocphy=9017518&hvnetw=g&hvqmt=e&hvrnd=13794579482296053720&hvtargid=kwd-1966938765720&hydadcr=7913_13469604&keywords=guide+16+saucony&qid=1714652459&sr=8-1, at least as early as Jan. 11, 2024.

https://www.amazon.com/Saucony-S20549-25-Guide-Running-Silver/dp/B07VM8RN48/ref=asc_df_B07VM8RN48/?tag=hyprod-20&linkCode=df0&hvadid=400486142790&hvpos=&hvnetw=g&hvrnd=10802253176564710291&hvpone=&hvptwo=&hvqmt=&hvdev=c&hvdvcmdl=&hvlocint=&hvlocphy=9017518&hvtargid=pla-845077262867&psc=1&tag=&ref=&adgrpid=93830787028&hvpone=&hvptwo=&hvadid=400486142790&hvpos=&hvnetw=g&hvrnd=10802253176564710291&hvqmt=&hvdev=c&hvdvcmdl=&hvlocint=&hvlocphy=9017518&hvtargid=pla-845077262867, at least as early as Jan. 11, 2024.

Saucony, Triumph 18 Running Shoe, https://www.amazon.com/Saucony-S10596-40-Triumph-Running-Charcoal/dp/B0842PNC1F/ref=sr_1_1_sspa?crd=35UVNQ3ZBYBAE&keywords=saucony+triumph&qid=1641837466&sprefix=saucony+triumph%2Caps%2C164&sr=8-1, at least as early as Jan. 11, 2024.

https://www.amazon.com/Saucony-S10596-40-Triumph-Running-Charcoal/dp/B0842PNC1F/ref=sr_1_1_sspa?crd=35UVNQ3ZBYBAE&keywords=saucony+triumph&qid=1641837466&sprefix=saucony+triumph%2Caps%2C164&sr=8-1, at least as early as Jan. 11, 2024.

* cited by examiner

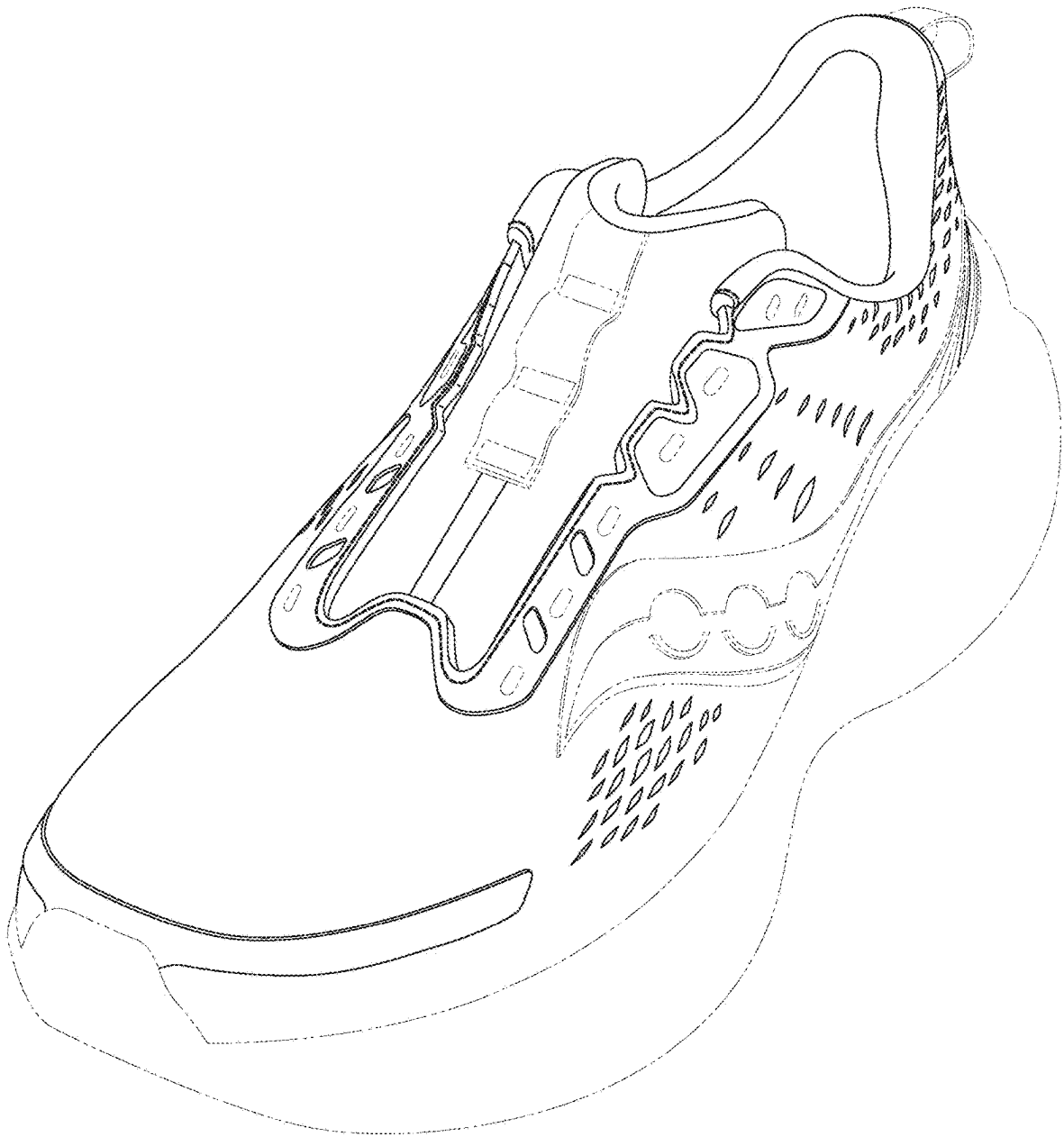


Fig. 1

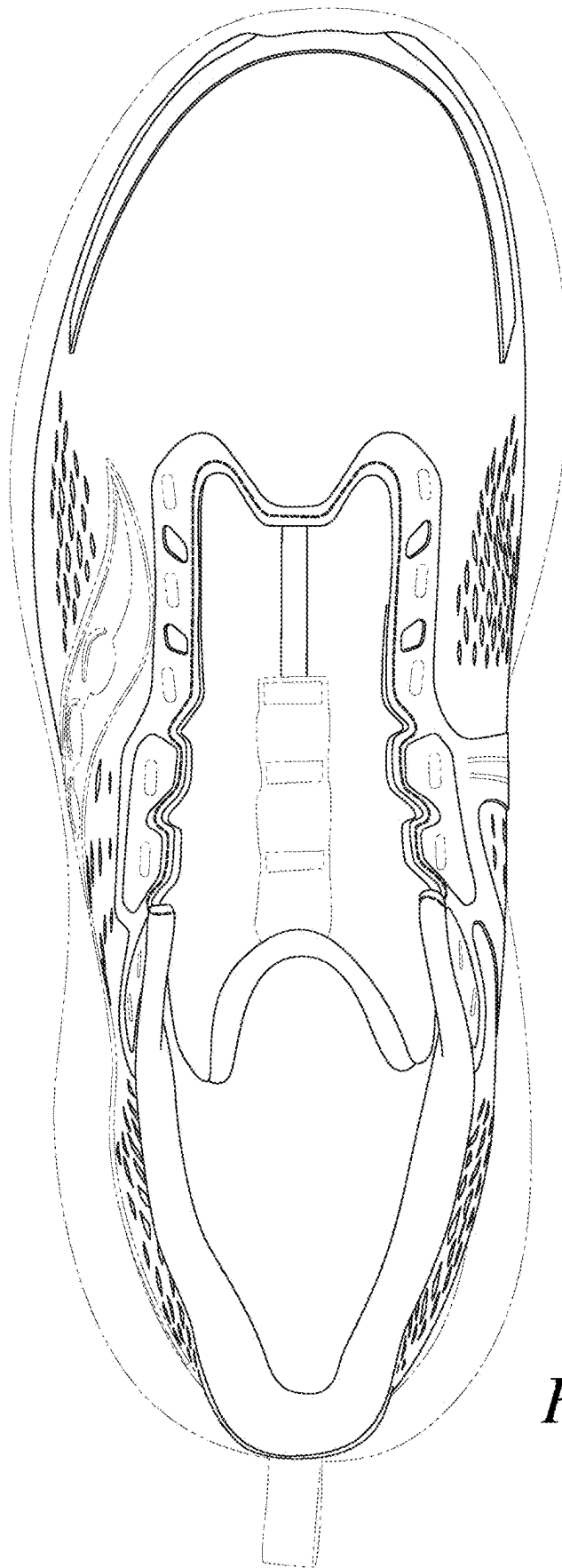


Fig. 2

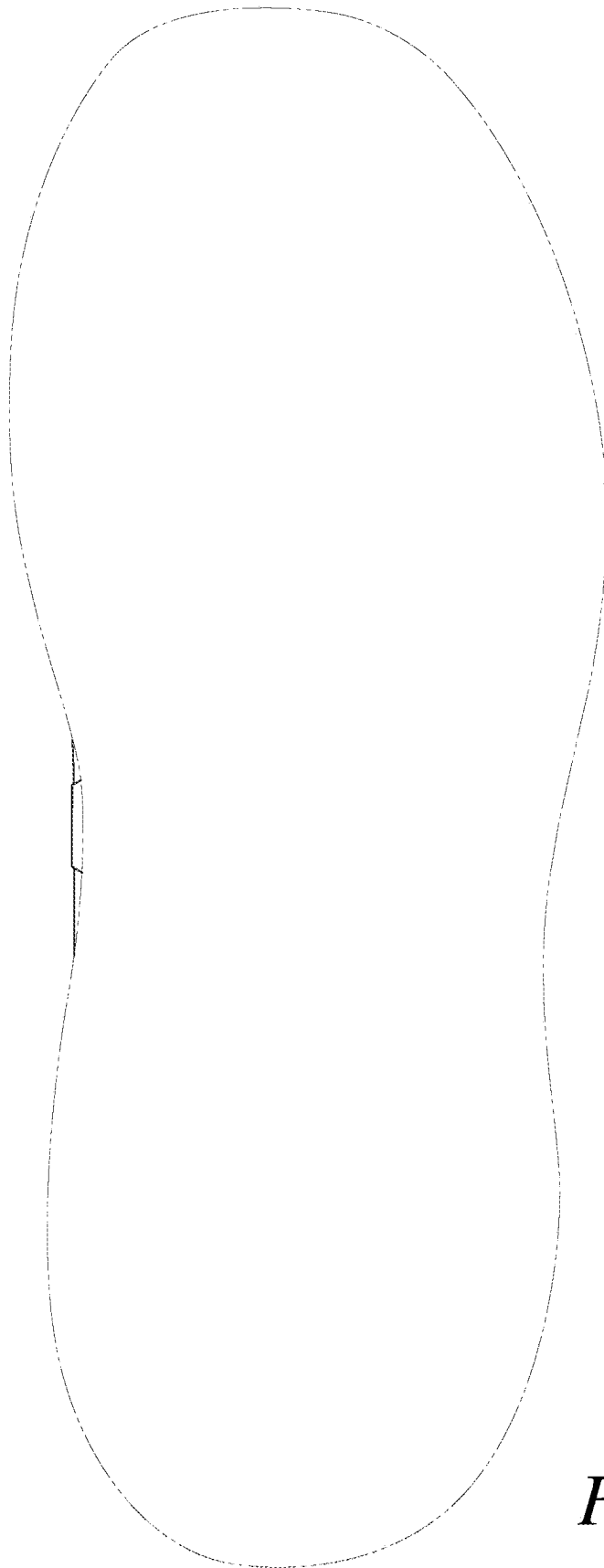


Fig. 3

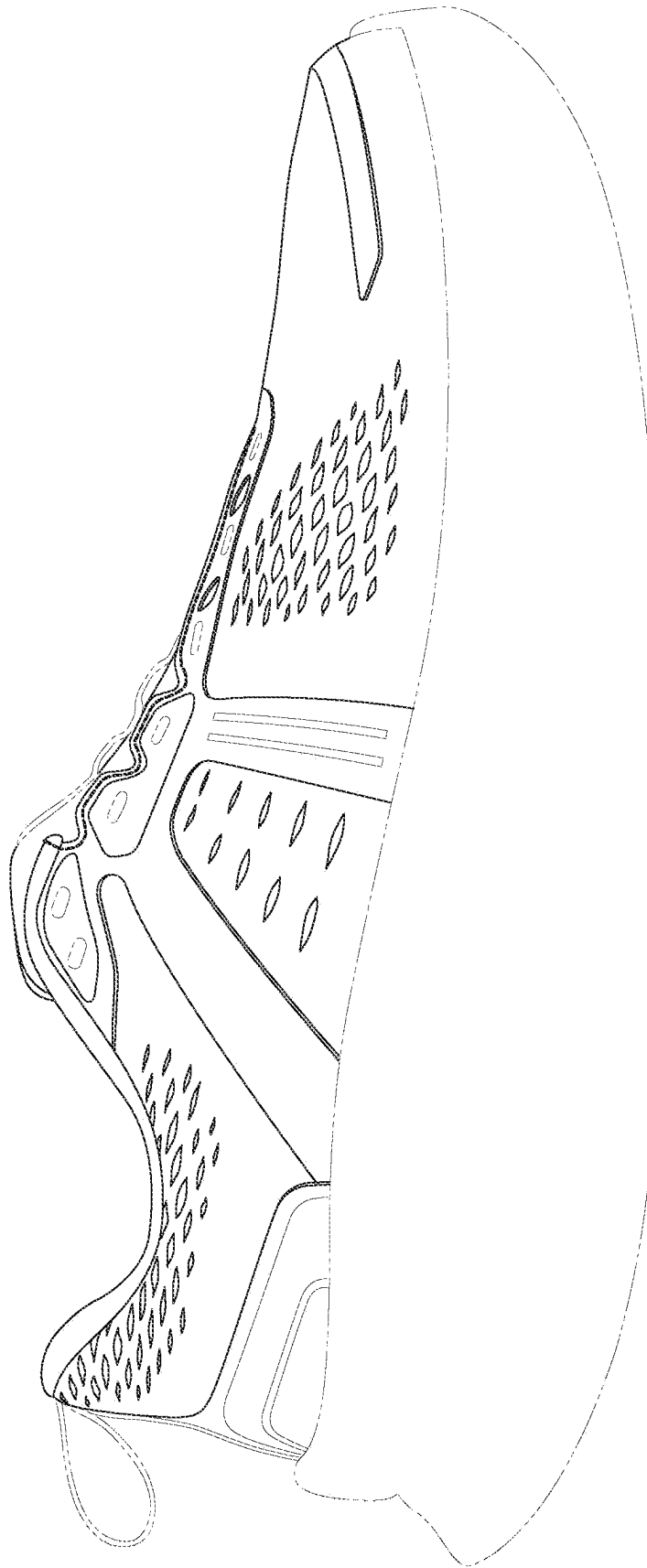


Fig. 4

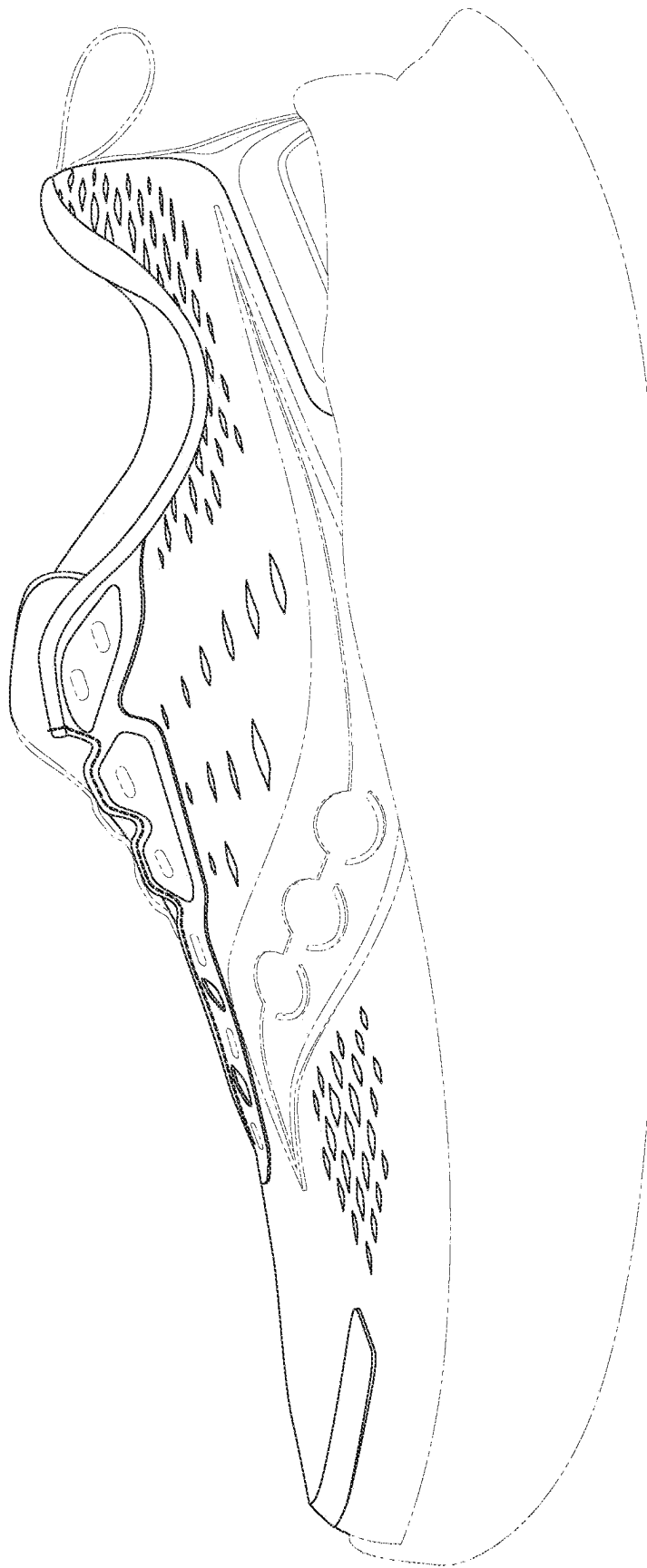


Fig. 5

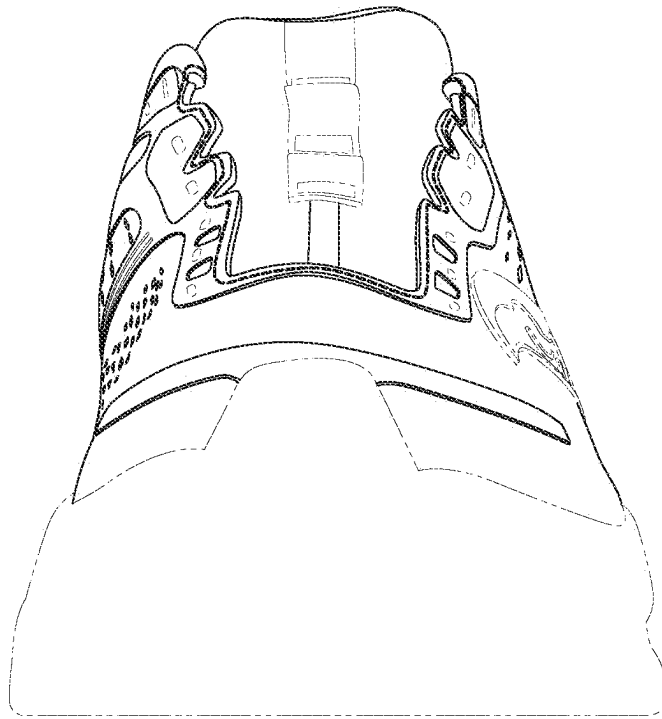


Fig. 6

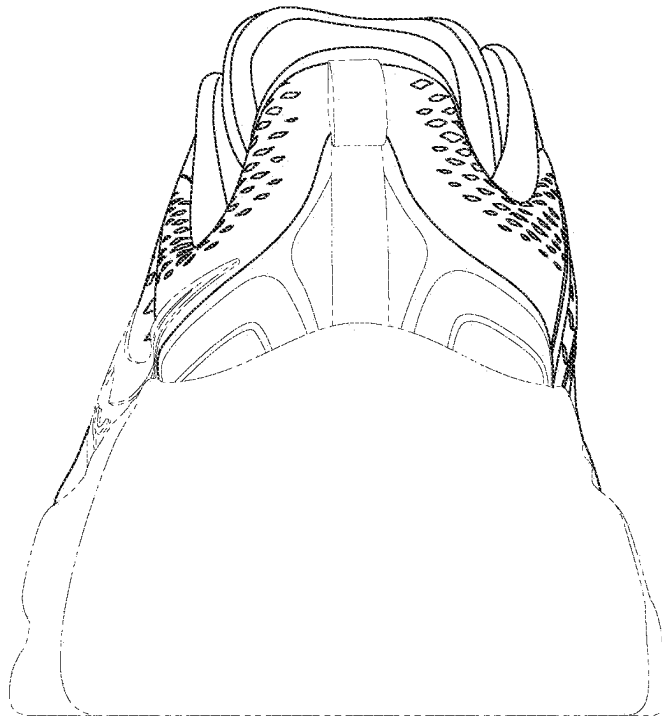


Fig. 7